

Court No. - 3

Case :- WRIT - C No. - 19088 of 2022

Petitioner :- Satyapal Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ajay Kumar

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Ajay Kumar, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Baleshwar Chaturvedi, learned counsel for the respondent No.2 and 3.

This writ petition has been filed praying for the following relief:

- "1. Issue a writ order or direction in the nature of certiorari quashing the notice dated 20.05.2021 and 22.06.2021 (Annexure No.1 and 3) to this writ petition.*
- 2. Issue a writ order or direction in the nature of mandamus directing and commanding the respondents not to recover to amount of Rs. 74,498/- against the petitioner.*
- 3. Issue a writ order or direction in the nature of mandamus directing and commanding the respondents giving the opportunity of hearing of the petitioner at the time of assistance was made.*
- 4. Issue any other suitable writ, order or direction which this Hon'ble Court may deem fit and proper in the facts and circumstances of the case."*

Sri Baleshwar Chaturvedi, learned counsel for the respondent No.2 and 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 13.7.2022

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